

DELIBERATE INDIFFERENCE AT THE CLASSIFICATION STAGE

COMPARATOR INSERT — TORT ALIGNMENT (PRE-HARM / INTAKE)

I. CORE PROPOSITION (LOCKED)

Where an institution demonstrates the ability to recognize, classify, and intervene at the earliest stage of harm in one protected domain, but fails to apply that same classification precision and early-stage activation to comparable sex-based signals involving girls, the resulting disparity is not ambiguity.

It is selective non-application.

Selective non-application under a shared duty of care converts classification choice into breach.

II. GOVERNING CONDITION

Same institution

- same duty (student safety)
- same developmental conditions
- same early-stage signal structure (attention → labeling → reinforcement)

Different classification outcome:

- LGBTQ signals
 - immediate protected classification
 - pathway activation
 - intervention + tracking
- Girls' sexualized signals
 - protected classification available

- ambiguity / downgrade (“tickling,” “teasing,” “peer conflict”)
 - protected pathway not activated
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III. STRUCTURAL MECHANISM (PATHWAY)

proven capacity to classify early

- establishes actual operational standard of care

ambiguous intake signal

- discretionary classification applied

fork:

Pathway A (applied elsewhere)

protected classification

- safeguarding architecture activates
- institution assumes burden
- early interruption possible

Pathway B (girls’ pathway — observed: Chapel Hill)

reported sex-based harm signal

- classified as “tickling”
 - protected classification available
 - not activated
 - no safeguarding pathway triggered
 - no separation / containment
 - continued shared exposure
 - weaker architecture preserved
 - burden shifts to child
 - pathway continues
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IV. TORT CONVERSION (ELEMENT ALIGNMENT)

Duty

institutional duty of reasonable care to protect students

- confirmed through demonstrated early-classification capability in comparator domain

Breach

failure to apply same classification precision and early activation

- selective non-application under identical conditions
- deviation from established institutional standard

Foreseeability

recognized early-stage harm pathways already operationalized elsewhere

- knowledge cannot be denied

Causation

downgrade (Chapel Hill)

- no safeguarding activation
- continued exposure / recurrence

counterfactual (internal comparator):

if stronger pathway had been activated

- interruption would have occurred

Damages

harm accumulates under weaker pathway conditions

V. CLASSIFICATION DIFFERENTIAL AS EVIDENCE

The distinction is not the underlying conduct.

The distinction is the institutional classification applied to that conduct.

same signal structure

- different category assignment
- different protection outcome

Accordingly:

harm is not misperceived

- harm is differently treated
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VI. PRE-INTAKE CONDITION (KNOWLEDGE NON-TRANSLATION)

historically known risks

→ not translated into decision-usable frameworks at entry

student report arrives:

→ incomplete / weakened signal

institution receives:

→ interpretive control

Result:

classification discretion expands at intake

VII. CONTROL POINT (LOCKED)

first classification

→ determines whether protection exists at all

no mandatory upgrade rule

→ no second-review trigger

→ no presumption of protected classification for sexual signals

Result:

ambiguity defaults downward

VIII. STRUCTURAL COMPRESSION (FINAL)

proven capacity to protect

shared duty

same developmental mechanism

protected classification available but not used

→ selective non-application

→ deviation from standard of care

→ breach

IX. STRIKE LINE (LOCKED)

Same system.
Same duty.
Same capacity.
Protected classification available — not activated.

→ That difference is the liability.

X. DOCTRINAL FUNCTION

This is not a failure to respond after harm.

This is a failure at the point where harm becomes legally visible:
classification stage.

Where classification determines pathway strength,
and pathway strength determines whether harm is interruptible,
classification disparity functions as the earliest actionable breach point.

XI. FINAL LOCK

Where institutions can classify early but do not classify here,
the issue is not whether harm occurred.

The issue is whether institutional classification prevented
that harm from being recognized, interrupted, and protected
when the system already knew how to do so.